

Khadi And Village Industries Commission Employees (Conduct) Regulations, 2003

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Khadi And Village Industries Commission Employees (Conduct) Regulations, 2003

UNION OF INDIA

India

Khadi And Village Industries Commission Employees (Conduct) Regulations, 2003

Rule KHADI-AND-VILLAGE-INDUSTRIES-COMMISSION-EMPLOYEES-CONDUCT-REGULATIONS-2003 of 2003

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Khadi And Village Industries Commission Employees (Conduct) Regulations, 2003

1974.

G.S.R. 434 (E), dated 26th May, 2003. - In exercise of the powers conferred by Section 27 of the Khadi and Village Industries Commission Act, 1956 (61 of 1956), the Commission with the previous sanction of the Central Government and in partial supersession of the Khadi and Village Industries Commission Employees (Conduct, Discipline and Appeal) Regulations, 1961 (so far as they relates to the regulations of conduct of the employees), except as respects things done or omitted to be done before such supersession, hereby makes the following regulations, namely :

1.

Short title, commencement and application.

(1)

These Regulations may be called the Khadi and Village Industries Commission Employees (Conduct) Regulations, 2003.

(2)

They shall come into force on the date of their publication in the Official Gazette.

(3)

They shall apply to every person appointed to any post under the Commission, whether borne on regular or trading or schematic or work charged or project establishment, including a casual employee, or any other official whose wages or salary or honorarium are paid by the Commission.

2.

Definitions.

- In these regulations, unless the context otherwise requires,-

(a)

"Chairman" means the Chairman appointed under sub-section (3) of Section 4 of the Khadi and Village Industries Commission Act, 1956 (hereinafter referred to as the Act);

(b)

"Chief Executive Officer" means the Chief Executive Officer appointed under clause (d) of sub-section (2) of Section 4 of the Act;

(c)

"Commission" means the Khadi and Village Industries Commission established under Section 4 of the ;

(d)

"Competent authority" means the Appointing authority or Disciplinary authority as defined under regulation 2 of the Khadi and Village Industries Commission Employees (Classification, Control and Appeal) Regulations, 2003 or any other authority declared by the commission as such from time to time.

(e)

"Employee" means any person appointed by the Commission to any service or post in connection with the affairs of the Commission;

including the employees whose services are placed by the Commission at the disposal of a Company, Board, Bank, local authority, an organisation, State Government or the Central Government notwithstanding the fact that his salary is drawn from sources other than that of the Commission.

(f)

"Member of the family" in relation to an employee includes.

(i)

the wife or husband, as the case maybe, of the employee, whether residing with the employee or not but does not include a wife or husband, as the case may be, separated from the employee by a decree or order of a competent court;

(ii)

son or daughter or step/son or step-daughter of the employee and wholly dependent on him, but does not include a child or step-child who is no longer in any way dependent on the employee or of whose custody the employee has been deprived by or under any law;

(iii)

Any other person related, whether by blood or marriage, to the employee or to the employee's wife or husband and wholly dependent on the employee.

(g)

"Prescribed authority "means.

(i)

Chairman, in the case of employees holding the post of Joint Chief Executive Officer, Deputy Chief Executive Officer and Principal Scientific Officer;

(ii)

The appointing authority, as defined in the Khadi and Village Industries Commission Employees (Classification, Control, and Appeal) Regulations, 2003, for other categories of employees.

3.

General.

(1)

Every employee shall at all times-

(i)

maintain absolute integrity;

(ii)

maintain devotion to duty ; and

(iii)

do nothing which is unbecoming of an employee.

(iv)

[commit himself to and uphold the supremacy of the Constitution and democratic values;

[Inserted by Notification No. G.S.R. 707 (E), dated 19.7.2016.]

(v)

defend and uphold the sovereignty and integrity of India, the security of the State, public order, decency and morality;

(vi)

maintain high ethical standards and honesty;

(vii)

maintain political neutrality;

(viii)

promote the principles of merit, fairness and impartiality in the discharge of duties;

(xi)

maintain accountability and transparency;

(x)

maintain responsiveness to the public, particularly to the weaker section;

(xi)

maintain courtesy and good behavior with the public;

(xii)

take decisions solely in public interest and use or cause to use public resources efficiently, effectively and economically;

(xiii)

declare any private interests relating to his public duties and take steps to resolve any conflicts in a way that protects the public interest;

(xiv)

not place himself under any financial or other obligations to any individual or organization which may influence him in the performance of his official duties;

(xv)

not misuse his position as employee of the Commission and not take decisions in order to derive financial or material benefits for himself, his family or his friends;

(xvi)

make choices, take decisions and make recommendations on merit alone;

(xvii)

act with fairness and impartiality and not discriminate against anyone, particularly the poor and the under-privileged sections of the society;

(xviii)

refrain from doing anything which is or may be contrary to any law, rules, regulations and established practices;

(xix)

maintain discipline in discharge of his duties and be liable to implement the lawful orders duly communicated to him;

(xx)

maintain confidentiality in the performance of his official duties as required by any laws for the time being in force, particularly with regard to information, disclosure of which may prejudicially affect the sovereignty and integrity of India, the security of the State, strategic, scientific or economic interests of the State, friendly relation with foreign countries or lead to incitement of an offense or illegal or unlawful gain to any person;

(xxi)

perform and discharge his duties with the highest degree of professionalism and dedication to the best of his abilities.]

(2)

(i)

every employee holding a supervisory post shall take all possible steps to ensure the integrity and devotion to duty of all the employees for the time being under his control and authority.

(ii)

no employee shall, in the performance of his official duties, or in exercise of powers conferred on him, act otherwise than in his best judgment except when he is acting under the direction of his official superior.

(iii)

the direction of the official superior shall ordinarily be in writing. Oral directions to subordinates shall be avoided, as far as possible. Where the issue of oral direction becomes unavoidable, the official superior shall confirm it in writing immediately thereafter.

(iv)

An employee who has received oral direction from his official superior shall seek confirmation of the same in writing as early as possible, whereupon it shall be the duty of the official superior to confirm the direction in writing.

(v)

Every employee shall observe regulations of procedure and other regulations framed by the Commission and also circulars and instructions issued by the competent authority from time to time.

(vi)

Every employee shall wear khadi or polyvastra during the period of his service under the Commission.

Explanation I - An employee who habitually fails to perform the task assigned to him within the time set for the purpose and with the quality of performance expected of him shall be deemed to be lacking in devotion to duty within the meaning of clause (ii) of sub-regulation (1).

Explanation II. - An employee who is habitually not punctual or frequently remains absent without prior permission shall be deemed to be not maintaining devotion to duty within the meaning of clause (ii) of sub-regulation (1).

Explanation III. - Nothing in clause (ii) of sub-regulation (2) shall be construed as empowering an employee to evade his responsibilities by seeking instructions from, or approval of, a superior officer or authority when such instructions are not necessary under the scheme of distribution of powers and responsibilities.

4.

Promptness and Courtesy.

- No employee shall

(a)

in the performance of his official duties, act in a discourteous manner;

(b)

in his official dealings with the public or otherwise adopt dilatory tactics or willfully cause delays in disposal of work assigned to him.

5.

Observance of Government's policies.

- Every employee shall, at all times-

(i)

act in accordance with the Government's policies regarding age of marriage, preservation of environment, protection of wild life and cultural heritage;

(ii)

observe the Government's policies regarding prevention of crime against women.

6.

Prohibition of sexual harassment of working women.

(1)

No employee shall indulge in any act of sexual harassment of any woman at her work place.

(2)

Every employee who is incharge of a work place shall take appropriate steps to prevent sexual harassment to any

woman at such work place.

[Explanation. - For the purpose of this regulation,-

(a)

"sexual harassment" includes any one or more of the following acts or behavior, (whether directly or by implication) namely:-

(i)

physical contact and advance; or

(ii)

demand or request for sexual favours; or

(iii)

sexually coloured remarks; or

(iv)

showing any pronography; or

(v)

any other unwelcome physical, verbal or non-verbal conduct of a sexual nature.

(b)

The following circumstances, among other circumstances, if it occurs or is present in relation to or connected with any act or behaviour of sexual harassment may amount to sexual harassment:-

(i)

implied or explicit promise of preferential treatment in employment; or

(ii)

implied or explicit threat of detrimental treatment in employment; or

(iii)

implied or explicit threat of her present or future employment status; or

(iv)

interference with her work or creating an intimidating or offensive or hostile work environment for her; or

(v)

humiliating treatment likely to affect her health or safety.

(c)

"workplace" includes -

(i)

any department, organisation, undertaking, establishment, enterprise, institution, office, branch or unit which is established, owned, controlled or wholly or substantially financed by funds provided directly or indirectly by the Central Government or Commission.

(ii)

hospital or nursing homes;

(iii)

any sports institute, stadium, sports complex or competition or games venue, whether residential or not used for training, sports or other activities relating thereto';

(iv)

any place visited by the employee arising out of or during the course of employment including transportation provided by the employer for undertaking such training;

(v)

a dwelling place or a house.]

7.

Employment of near relatives of employees.

(1)

No employee of the Commission shall use his position or influence directly or indirectly to secure employment for any member of his family in any society, institution, company or firm.

(2)

(i)

No Group 'A' or Group 'B' Officer shall, except with the previous sanction of the prescribed authority permit his son, daughter or other dependent, to accept employment in any society, institution, company or firm with which he has official dealings or in any other society, institution, company or firm having official dealings with the Commission :

Provided that where the acceptance of the employment cannot await prior permission of the prescribed authority or is otherwise considered urgent, the matter shall be reported to the prescribed authority and the employment may be accepted provisionally subject to the permission of the prescribed authority.

(ii)

An employee shall, as soon as he becomes aware of the acceptance by a member of his family of an employment in any society, institution, company or firm, intimate such acceptance to the prescribed authority and shall also intimate whether he has or has had any official dealings with that society, institution, company or firm.

(3)

No employee shall in the discharge of his official duties deal with any matter or give or sanction any contract to any society, institution, company or firm or any other person if any member of his family is employed in that society, institution, company or firm or under that person or if he or any member of his family is interested in such matter or contract in any other manner and the employee shall refer every such matter or contract to his official superior and the matter or contract shall thereafter be disposed of according to the instructions of the authority to whom the reference is made.

8.

Taking part in politics and elections.

(1)

No employee shall be a member of, or be otherwise associated with any political party or any organisation which takes part in politics nor shall he take part in, subscribe in aid of, or assist in any other manner, any political movement or activity.

(2)

It shall be the duty of every employee the endeavour to prevent any member of his family from taking part in, subscribing in aid of, or assisting in any other manner, any movement or activity which is, or tends directly or indirectly to be, subversive of the Government as by law established and where an employee is unable to prevent a member of his family from taking part in, or subscribing in aid of, or assisting in any other manner, any such movement or activity, he shall make a report to that effect to the Commission.

(3)

If any question arises whether a party is a political party or whether any organisation takes part in politics or whether any movement or activity falls within the scope of sub-regulation (2), the decision of the Commission thereon shall be final.

(4)

No employee shall canvass or otherwise interfere with or use his influence in connection with, or take part in, an election to any legislature or local authority:

Provided that an employee qualified to vote at such election may exercise his right to vote, but where he does so, he shall give no indication of the manner in which he proposes to vote or has voted :

Provided further that an employee shall not be deemed to have contravened the provisions of this sub-regulation by reason only that he assists in the conduct of an election in the due performance of a duty imposed on him by or under any law for the time being in force.

Explanation. - The display by an employee on his person, vehicle or residence of any electoral symbol shall amount to using his influence in connection with an election within the meaning of this sub-regulation.

9.

Joining of association by employees.

- No employee shall join, or continue to be a member of an association the objects or activities of which are prejudicial to the interests of the Commission or the interest of the sovereignty and integrity of India, or public order or morality.

10.

Demonstration and strikes.

- No employee shall

(i)

engage himself or participate in any demonstration, which is prejudicial to the interests of the Commission, or the

sovereignty and integrity of the India, the security of the State, friendly relations with foreign States, public order, decency or morality, or which involves contempt of court, defamation or incitement to an offence, or

(ii)

resort to, or in any way abet any form of strike or coercion or physical duress in connection with any matter pertaining to his service or the service of any other employee.

11.

Connection with press or other media.

(1)

No employee shall, except with the previous sanction of the Commission, own wholly or in part, or conduct or participate in the editing or management of, any newspaper or other periodical publication or electronic media.

(2)

Nothing in sub-regulation (1) shall apply in case an employee in the bona fide discharge of his official duties publishes a book or participates in a public media.

(3)

An employee publishing a book or participating in a public media shall at all times make it clear that the views expressed by him are his own and not that of the Commission.

12.

Criticism of Commission or Government.

- No employee shall in any radio broadcast, telecast through any electronic media, or in any document published in his own name or anonymously, pseudonymous or in the name of any other person or in any communication to the press or in any public utterance, make any statement of fact or opinion.

(i)

which has the effect of an adverse criticism of any current or recent policy or action of the Commission or Central Government or a State Government:

Provided that, nothing contained in this clause shall apply to bona fide expression of views by an employee as an office-bearer of a trade union or association of employees for the purpose of safeguarding the conditions of service of such employees or for securing an improvement thereof, or

(ii)

which is capable of embarrassing the relations between the Commission and the Central Government or Government of any State or between the Central Government and the Government of any State, or

(iii)

which is capable of embarrassing the relations between the Central Government and the Government of any foreign State :

Provided that nothing in this regulation shall apply to any statements made or views expressed by an employee in his official capacity or in the due performance of the duties assigned to him.

13.

Evidence before any Committee or any other authority.

(1)

Save as provided in sub-regulation (3), no employee shall, except with the previous sanction of the Chief Executive Officer, give evidence in connection with any inquiry conducted by any person, committee or authority.

(2)

Where any sanction has been accorded under sub-regulation (1), no employee giving such evidence shall criticise the policy or any action of the Commission or of the Central Government or of a State Government.

(3)

Nothing in this regulation shall apply to

(a)

evidence given at an inquiry before an authority appointed by the Commission or Central Government, Parliament or a State Legislature; or.

(b)

Evidence given in any judicial enquiry; or

(c)

Evidence given at any departmental enquiry ordered by authorities subordinate to the Commission.

14.

[Communication of official information.

[Substituted by Notification No. G.S.R. 707(E), dated 19.7.2016.]

- Every employee shall, in the performance of his duties in good faith, communicate information to a person in accordance with the Right to Information Act, 2005(22 of 2005) and the rules made thereunder :

Provided that no employee shall, except in accordance with any general or special order of the Commission or in performance in good faith of duties assigned to him, communicate, directly or indirectly, any official document or any part thereof or classified information to any employee or any other person, to whom he is not authorised to communicate such document or classified information]

[Substituted by Notification No. G.S.R. 707 (E), dated 19.7.2016.]

14. Unauthorised communication of information.- No employee shall, except in accordance with any general or special order of the Commission or in the performance in good faith of duties assigned to him, communicate, directly or indirectly, any official document or any part thereof or information to any employee or any other person, to whom he is not authorised to communicate such document or information.

Explanation.- Quotation by an employee of or from any letter, circular or office memorandum or from the notes on any file, to which he is not authorised to have access, or which he is not authorised to keep in his personal custody or for personal purposes, shall amount to unauthorised communication of information within the meaning of this regulation.

15.

Subscriptions.

- No employee shall, except with the previous sanction of the prescribed authority, ask for or accept contributions to, or otherwise associate himself with the raising of, any funds, or other collections in cash or in kind in pursuance of any object whatsoever.

16.

Gifts.

(1)

Save as otherwise provided in these regulations, no employee shall accept, or permit any member of his family or any other person acting on his behalf to accept any gift.

Explanations. - The expression 'gift' shall include free transport, boarding, lodging or other service or any other pecuniary advantage provided by any person other than a near relative or personal friends having no official dealings with the employee.

Note I:- A casual meal, lift or other social hospitality shall not be deemed to be a gift.

Note II:- An employee shall avoid accepting lavish hospitality or frequent hospitality from any individual, industrial or commercial firms, organisations, etc., having official dealings with him.

(2)

On the occasions such as weddings, anniversaries, funerals or religious functions, when the making of the gift is in conformity with the prevailing religious and social practice, an employee may accept gifts (the value of which does not exceed rupees five thousand or the limit as may be modified from time to time) from his near relatives or from his personal friends having no official dealings with him, but shall make a report to the Commission, if the value of such gift exceeds

(i)

[rupees twenty-five thousand in the case of an employee holding any Group 'A' post ;

[Substituted by Notification No. G.S.R. 707(E), dated 19.7.2016.]

(ii)

rupees fifteen thousand in the case of an employee holding any Group 'B' post; and

(iii)

rupees seven thousand five hundred in the case of an employee holding any Group 'C' post.]

(3)

In any other case, an employee shall not accept any gift without the sanction of the prescribed authority if the value exceeds

(i)

[rupees one thousand five hundred in the case of employees holding any Group 'A' or Group B' post ; and
[Substituted by Notification No. G.S.R. 707(E), dated 19.7.2016.]

(ii)

rupees five hundred in the case of employees holding any Group 'C' or Group 'D' post.]

(4)

Notwithstanding anything contained in sub-regulations (2) and (3), an employee, being a member of the Indian delegation or otherwise, may receive and retain gifts from foreign dignitaries, if the market value of gifts received on one occasion does not exceed rupees one thousand. In all other cases, the acceptance and retention of such gifts shall be regulated by the instructions issued by the Commission in this regard from time to time.

(5)

An employee shall not accept any gifts from any foreign firm which is either contracting with the Commission or is one with which the employee had, has or is likely to have official dealings. Acceptance of gifts by an employee from any other firm shall be subject to the provisions of sub-regulation. (3).

17.

Dowry.

- No employee shall

(i)

give or take or abet the giving or taking of dowry; or

(ii)

demand directly or indirectly, from the parent or guardian of bride or bridegroom, as the case may be, any dowry.

Explanation. - For the purpose of this regulation "Dowry" has the same meaning as in the Dowry Prohibition Act, 1961 (28 of 1961

).

18.

Public demonstrations in honour of employees.

- No employee shall, except with the previous sanction of the Commission, receive any complimentary or valedictory address, or accept any testimonial, or attend any meeting or entertainment held in his honour; or in the honour of any other employee :

Provided that nothing in this regulation shall apply to-

(i)

a farewell entertainment of a substantially private and informal character held in honour of an employee or any other employee on the occasion of his transfer or retirement or any person who has recently quitted the service of the Commission; or

(ii)

the acceptance of simple and inexpensive entertainments arranged by public bodies or institutions.

Note. - Exercise of pressure or influence of any sort on any employee to induce him to subscribe towards any farewell entertainment if it is of a substantially private or informal character and the collection of subscriptions from Group 'C' or Group 'D' employees under any circumstances for the entertainment of any employee not belonging to Group 'C' or Group 'D', is forbidden.

19.

Private trade or employment.

(1)

Subject to the provisions of sub-regulation (2), no employee shall, except with the previous sanction of the Chief Executive Officer

(a)

engage directly or indirectly in any trade or business; or assist directly or indirectly in the promotion of a society or trust or cooperative society receiving financial assistance from the Commission or Khadi and Village Industries Board;

(b)

negotiate for, or undertake, any other employment; or

(c)

hold an elective office, or canvass for a candidate or candidates for an elective office, in any body, whether incorporated

or not; or

(d)

canvass in support of any business of insurance agency, commission agency, etc. owned or managed by any member of his family; or

(e)

take part except in the discharge of his official duties, in the registration, promotion or management of any Bank or other Company registered or required to be registered, under the Companies Act, 1956 (1 of 1956) or any other law for the time being in force, or of any Co-operative society for commercial purposes;

(f)

participate in or associate himself in any manner in the making of

(i)

a sponsored media (radio or television) programme; or

(ii)

a media programme commissioned by Government media but produced by a private agency; or

(iii)

a privately produced media programme including video magazine:

Provided that no previous permission shall be necessary in case where the employee participates in a programme produced or commissioned by Government media in his official capacity.

(2)

An employee may, without the previous sanction of the Chief Executive Officer,

(a)

undertake honorary work of a social or charitable nature; or

(b)

undertake occasional work of a literary, artistic or scientific character; or

(c)

participate in sports activities as an amateur; or

(d)

take part in the registration, promotion or management (not involving the holding of an elective office) of a literary, scientific or charitable society or of a club or similar organisation, the aims or objects of which relate to promotion of sports, cultural or recreational activities, registered under the Societies Registration Act, 1860 (21 of 1860), or any other law for the time being in force; or

(e)

take part in the registration, promotion or management (not involving the holding of elective office) of a co-operative society substantially for the benefit of the employees registered under the Co-operative Societies Act, 1912 (2 of 1912) or any other law for the time being in force :

Provided that-

(i)

he shall discontinue taking part in such activities, if so directed by the Commission; and

(ii)

in a case falling under clause (d) or clause (e) of this sub-regulation, his official duties shall not suffer thereby and he shall, within a period of one month of his taking part in such activity, report to the Commission giving details of the nature of his participation.

(3)

Every employee shall report to the Commission if any member of his family is engaged in a trade or business or owns or manages an insurance agency or commission agency.

(4)

Every employee shall report to the Commission if any member of his family has promoted or is office-bearer of any institutions coming under the purview of the Commission or Khadi and Village Industries Board.

(5)

Unless otherwise provided by general or special orders of the Commission, no employee shall accept any fee for any work done by him for any private or public body or any private person without the sanction of the prescribed authority.

Explanation. - The item 'fee' used here shall have the meaning assigned to it in Fundamental Rule 9 (6-A).

20.

Subletting and vacation of Commission accommodation.

(1)

Save as otherwise provided in any other law for the time being in force, no employee shall sublet, lease or otherwise allow occupation by any other person of the commission accommodation which has been allotted to him.

(2)

An employee shall, after the cancellation of his allotment of Commission accommodation vacate the same within the time limit prescribed by the allotting authority.

21.

Investments, lending and borrowing.

(1)

No employee shall speculate in any stock, share or other investment :

Provided that nothing in this sub-regulation shall apply to occasional investments made through stock brokers or other persons duly authorised and licensed or who have obtained a certificate of registration under the relevant law.

Explanation. - Frequent purchase or sale or both, of shares, securities or other investments, shall be deemed to be speculation within the meaning of this sub-regulation.

(2)

No employee shall make, or permit any member of his family or any person acting on his behalf to make any investment, which is likely to embarrass or influence him in the discharge of his official duties. For this purpose, any purchase of shares out of the quotas reserved for Directors of companies or their friends and associates shall be deemed to be an investment which is likely to embarrass the employee.

(3)

If any question arises whether any transaction is of the nature referred to in sub-regulation (1) or sub-regulation (2), the decision of the Commission thereon shall be final.

(4)

(i)

No employee shall, save in the ordinary course of business with a bank or a public limited company, either himself or through any member of his family or any other person acting on his behalf,

(a)

lend or borrow or deposit money, as a principal or an agent, to, or from or with, any person or firm or private limited company within the local limits of his authority or with whom he is likely to have official dealings or otherwise place himself under any pecuniary obligation to such person or firm or private limited company; or

(b)

lend money to any person at interest or in a manner whereby return in money or in kind is charged or paid :

Provided that an employee may give to, or accept from a relative or a personal friend a purely temporary loan of a small amount free of interest, or operate credit account with a bona fide tradesman or make an advance of pay to his private employee :

Provided further, that nothing in this sub-regulation shall apply in respect of any transaction entered into by an employee with the previous sanction of the prescribed authority.

(ii)

When an employee is appointed or transferred to a post of such nature as would involve him in the breach of any of the provisions of sub-regulation (2) or sub-regulation (4), he shall forthwith report the circumstances to the prescribed authority and shall thereafter act in accordance with such order as may be made by such authority.

22.

Insolvency and habitual indebtedness.

- An employee shall so manage his private affairs as to avoid habitual indebtedness or insolvency. an employee against whom any legal proceedings is instituted for the recovery of any debt due from him or for adjudging him as an insolvent, shall forthwith report the full facts of the legal proceedings to the prescribed authority.

Note. - The burden of proving that the insolvency or indebtedness was the result of circumstances which, with the exercise of ordinary diligence, an employee could not have foreseen, or over which he had no control, and had not

proceeded from extravagant or dissipated habits, shall be upon the employee.

23.

Movable, immovable and valuable property.

(1)

(i)

Every employee shall on his first appointment submit a return of his assets and liabilities, in such form as may be prescribed by the Commission, giving the full particulars regarding-

(a)

the immovable property inherited by him, or owned or acquired by him or held by him on lease or mortgage, either in his own name or in the name of any member of his family or in the name of any other person ;

(b)

shares, debentures and cash including bank deposits inherited by him or similarly owned, acquired, or held by him;

(c)

other movable property inherited by him or similarly owned, acquired or held by him; and

(d)

debts and other liabilities incurred by him directly or indirectly.

Note 1. - Sub-regulation (1) shall not ordinarily apply to Group 'D' employees but the Chief Executive Officer may direct that it shall apply to any such employee or class of such employees.

Note 2. - In all returns, the values of items of movable property worth less than rupees ten thousand may be added and shown as a lumpsum. The value of articles of daily use such as clothes, utensils, crockery, books, etc., need not be included in such return.

(ii)

Every employee holding any post included in Group 'A' and Group 'B' shall submit an annual return in such form as may be prescribed by the Commission in this regard giving full particulars regarding the immovable property inherited by him or owned or acquired by him or held by him on lease or mortgage either in his own name or in the name of any member of his family or in the name of any other person. This return shall be filed by 31st January for the previous calendar year.

(2)

No employee shall, except with the previous knowledge of the prescribed authority, acquire or dispose of any immovable property by lease, mortgage, purchase, sale, gift or otherwise either in his own name or in the name of any member of his family :

Provided that the previous sanction of the prescribed authority shall be obtained by the employee if any such transaction is with a person having official dealings with him.

(3)

[Where an employee enters into a transaction in respect of movable property either in his own name or in the name of the member of his family, he shall, within one month from the date of such transaction and report the same to the prescribed authority, if the value of such property exceeds 2 months' basic pay of the Government or Commission employee:

Provided that the previous sanction of the prescribed authority shall be obtained by the employee if any such transaction is with a person having official dealings with him.]

[Substituted by Notification No. G.S.R. 707(E), dated 19.7.2016.]

(4)

The Commission or the prescribed authority may, at any time, by general or special order, require an employee to furnish, within a period specified in the order, a full and complete statement of such movable or immovable property held or acquired by him or on his behalf or by any member of his family as may be specified in the order. Such statement, shall, if so required by the Commission or by the prescribed authority, include the details of the means by which, or the source from which, such property was acquired.

(5)

The Chief Executive Officer may exempt any category of employees belonging to Group 'C' or Group 'D' from any of the provisions of this regulation except sub-regulation (4).

Explanation. I. - For the purposes of this regulation the expression movable property includes-

(a)

jewellery, insurance policies, the annual premia of which exceeds [two months]

[Substituted 'rupees ten thousand or one-sixth of the total annual emoluments received from Commission, whichever is less' by Notification No. G.S.R. 707(E), dated 19.7.2016.]

, shares, securities and debentures ;

(b)

all loans, whether secured or not, advanced or taken by the employee ;

(c)

motor cars, motor cycles, horses or any other means of conveyance; and

(d)

refrigerators, radios, electric and electronic items.

Explanation. II. - For the purposes of this regulation ' lease' means, except where it is obtained from, or granted to, a person having official dealings with the employee, a lease of immovable property from year to year or for any term exceeding one year or reserving a yearly rent.

24.

Restriction in relation to acquisition and disposal of immovable property outside India and transaction with foreigners, etc.

- Notwithstanding anything contained in sub-regulation (2) of regulation 23, no employee shall, except with the previous sanction of the prescribed authority

(a)

acquire, by purchase, mortgage, lease, gift or otherwise, either in his own name or in the name of any member of his family and immovable property situated outside India;

(b)

dispose of, by sale, mortgage, gift or otherwise or grant any lease in respect of any immovable property situated outside India which was acquired or is held by him either in his own name or in the name of any member of his family ;

(c)

enter into any transaction with any foreigner, foreign Government, foreign organisation or concern,-

(i)

for the acquisition, by purchase, mortgage, lease, gift or otherwise, either in his own name or in the name of any member of his family, or any immovable property;

(ii)

for the disposal or, by sale, mortgage, gift or otherwise, or the grant of any lease in respect of any immovable property which was acquired or is held by him either in his own name or in the name of any member of his family.

25.

Vindication of acts and character.

(1)

No employee shall, except with the previous sanction of the prescribed authority, have recourse to any Court or to the press for the vindication of any official act which has been the subject matter of adverse criticism or an attack of defamatory character :

Provided that if no such sanction is received by the employee within a period of three months from the date of receipt of his request by the Commission, he shall be free to assume that the permission as sought for has been granted to him.

(2)

Nothing in this regulation shall be deemed to prohibit an employee from vindicating his private character or any act done by him in his private capacity and where any action for vindicating his private character or any act done by him in private capacity is taken, the employee shall submit a report to the prescribed authority regarding such action.

26.

Canvassing of non-official or other outside influence.

- No employee shall bring or attempt to bring any political or other outside influence to bear upon any superior authority to further his interests in respect of matters pertaining to his service under the Commission.

27.

Restriction regarding marriage.

(1)

No employee shall enter into, or contract, a marriage with a person having a spouse living; and no employee having a spouse living, shall enter into, or contract, a marriage with any person :

Provided that the Commission may permit an employee to enter into, or contract, any such marriage if it is satisfied that-

(a)

such marriage is permissible under the personal law applicable to such employee and the other party to the marriage; and

(b)

there are other grounds for so doing.

(2)

An employee who has married or marries a person other than of Indian nationality shall forthwith intimate the fact to the Commission.

28.

Consumption of intoxicating drinks and drugs.

- No employee shall consume any intoxicating drink or drugs provided that nothing in this regulation shall apply to an employee who has, been advised for reasons of health by medical practitioner authorized in this behalf by the Commission to take any such drinks or drugs as medicine.

29.

Prohibition regarding employment of children below fourteen years of age.

- No employee shall employ to work any child below the age of fourteen years.

30.

Interpretation.

- If any question arises relating to the interpretation of these regulations, it shall be interpreted in accordance with the Central Civil Services (Conduct) Rules, 1964 and related orders and decision of the Government of India.

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